

Forest Rights Act, 2006 (FRA) — Short Notes

UPSC Anthropology Optional — Paper 2, Unit 6.3 | Source: Sarathi IAS Class Notes

1. What is FRA 2006?

Full name: **Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006**. It grants legal recognition to forest-dwelling communities over forest land and resources, correcting decades of colonial and post-colonial injustice.

2. Objectives

1. Undo the **historical injustice** suffered by forest-dwelling communities under colonial forest laws.
2. Ensure **land tenure, livelihood, and food security** of Forest Dwelling Scheduled Tribes (FDSTs) and Other Traditional Forest Dwellers (OTFDs).
3. Strengthen **conservation** by giving communities responsibility and authority over forests — sustainable use, biodiversity conservation, ecological balance.

3. Background — Why Was FRA Needed?

- Colonial forest laws (1865, 1878, 1927) declared forests as **state property**, overrode customary tribal rights.
- Indian Forest Act, 1927 — created for British timber needs; Section 64 allowed **arrest without warrant**.
- Millions of forest dwellers faced **harassment, evictions, bonded labour, extortion**.
- People forced to either **abandon forests** or live as "**criminals**" within them.
- National Forest Policy 1988 was a paradigm shift (people-oriented), but legal rights came only with FRA 2006.

4. Who is a Forest Dweller Under FRA?

Two-stage eligibility test:

Stage 1 — Both conditions must be met:

1. Primarily residing in forests or forest lands.
2. Depend on forests for livelihood ("**bonafide livelihood needs**").

Stage 2 — Must satisfy one:

- Conditions true for **75 years** → classified as **Other Traditional Forest Dweller (OTFD)**
- Member of **Scheduled Tribe** + **residing in Scheduled Area** → classified as **Forest Dwelling Scheduled Tribe (FDST)**

5. Three Types of Rights Under FRA

A. Land Rights

- No rights to land **not cultivated before 13 December 2005** and not currently cultivated.
- Those cultivating without documents can claim **up to 4 hectares** (for self-cultivation only).

B. Use Rights

- Collection of **Minor Forest Produce (MFP)** — tendu, herbs, medicinal plants (no timber).
- Rights over **grazing grounds and water bodies**.
- Traditional use areas for **nomadic/pastoralist communities**.

C. Community Forest Rights (CFR) — Section 3(1)(i)

- For the first time, gives **community the right to protect and manage** forests.
- Communities can **protect, regenerate, conserve, and manage** forest resources around their villages.
- Forest Department's control-oriented approach has often **slowed or obstructed** CFR recognition.

D. PVTGs — Special Provision

- **Section 3(1)(e)** — rights including **community tenures of habitat and habitation**.
- Covers common habitat areas in reserved and protected forests.

6. Role of Gram Sabha

- FRA makes **Gram Sabha the central authority** for claim verification and forest governance.
- Promotes **participatory democracy** at the local level.
- No forest diversion/mining should happen without **Gram Sabha consent**.

7. Achievements and Significance

Achievement	Details
Historical justice	Corrects colonial-era injustice; recognises both IFR and CFR rights
Community stewardship	Mendha Lekha (Maharashtra) and Betakata (Odisha) — successful CFR management models
Economic empowerment	Women in Odisha earn Rs 5,000-6,000/month through Van Dhan Kendras
Ecological benefits	CFR villages restored degraded forests; community control enhances conservation
Gender and PVTG inclusion	Women and PVTGs participate in Van Suraksha Samitis
FRA + PESA link	Maharashtra and Odisha merged FRA with PESA — legal corporate status to Gram Sabhas
Digital innovation	Gujarat's Narmada district — GPS and satellite imagery for claim verification
Overall progress	MoTA (2024): 60% claims recognised , covering 13 million acres

8. Implementation Issues

Issue	Details
High rejection rates	Odisha — over 1.4 lakh claims rejected; genuine dwellers branded "encroachers"
No communication of rejection	Violates Section 6(2) — denies right to appeal within 60 days
Weak district support	No revenue/forest maps given to Gram Sabhas
Forest Dept resistance	Officials impede CFR recognition; retain control. Eg: Kattunayakans (TN) harassed
Conflicting laws	FCA 1980, Wildlife Protection Act 1972, CAMPA 2016 conflict with FRA intent
Institutional turf wars	Poor coordination between MoTA and MoEFCC
Mining violations	Hasdeo Arand — CFR title cancelled for Adani coal mining without Gram Sabha consent
Judicial uncertainty	2019 SC order — eviction of 1.8 million forest dwellers (later stayed)
Uneven state progress	Only Maharashtra (36%), Chhattisgarh (24%), Odisha (10%) recognised substantial CFRs

9. Important Case Studies

Positive: Mendha Lekha (Maharashtra) and Betakata (Odisha)

- Formed **CFR Management Committees (CFRMCs)**.
- Sustainably regulate forest use, prevent illegal felling, conserve biodiversity.
- Model for **community-led forest governance**.

Positive: Kanger Ghati National Park (Chhattisgarh)

- **Second national park in India** (after Simlipal, Odisha) where CFR rights recognised.
- Indigenous communities allowed to reside and create community-led regulations.

Negative: Hasdeo Arand (Chhattisgarh)

- Ghatbarra village received CFR title (810 hectares, 2013) — **revoked in 2016** for coal mining (Adani).
- Chhattisgarh HC (Oct 2025) upheld revocation — activists called it "**mockery of FRA**".
- Shows **gap between law and implementation**.

10. Way Forward

1. Review all rejected claims transparently; ensure appeal rights under Section 6.
2. Recognise Gram Sabhas as **body corporates** (Maharashtra/Odisha model).
3. Joint MoTA-MoEFCC coordination mechanism.
4. Adopt **GPS and GIS mapping** for claims (BISAG/NRSC).
5. Mandate **Gram Sabha consent** before mining/diversion projects.
6. Link CFR areas with **TRIFED, Van Dhan Yojana, PM-JANMAN**.
7. Launch a **National FRA Mission** with separate budget and time-bound targets.

11. Key Scholars

Scholar	Contribution
B.K. Roy Burman (1982)	Tribes earn 1/3 income from MFP; positive role in forest preservation
Tripathi (2016)	Tribes live in harmonious, interdependent relationship with forests

12. Key Facts for Quick Revision

- Cut-off date for land rights: **13 December 2005**
- Land ceiling: **up to 4 hectares**
- PVTG habitat rights: **Section 3(1)(e)**
- CFR provision: **Section 3(1)(i)**
- Three types of rights: **Land, Use, Community Forest Rights**
- Gram Sabha = central authority for claims and governance
- MoTA (2024): 60% claims recognised, 13 million acres covered
- 2019 SC eviction order affected **1.8 million** forest dwellers — stayed after protests
- Mendha Lekha and Betakata = model CFR success stories
- Hasdeo Arand = worst case of FRA violation